

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

BRIGITTE BOGERT,

Petitioner

VS.

HEMANG KAPASI,

Respondent

) Case Number: FDI-21-794669

) Hearing Date: April 30, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: ATTORNEY'S FEES AND COSTS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Brigitte Bogert and Respondent Hemang Kapasi. They share two minor children: Aurelia (DOB: 6/7/14) and Raelynn (DOB: 4/15/18).
- 2) On 10/26/23, status-only dissolution judgment was entered and on 6/11/24 judgment on reserved issues was entered.
- 3) On 10/26/23, the Court issued a 5-year Domestic Violence Restraining Order; Petitioner is the protected party and Respondent is the restrained party.
- 4) On 10/16/25, Petitioner filed a Request for Order seeking to declare Respondent a vexatious litigant under Code of Civil Procedure section 391 subsections (b)(2), (b)(3), and (b)(5).
Petitioner also seeks an award of \$34,326.92 in attorney's fees and costs under Family Code section 271. The matter was set for hearing on 12/23/25.
- 5) On 10/16/25, Petitioner filed a Memorandum of Points and Authorities.
- 6) On 10/16/25, Petitioner's attorney filed a declaration in support of Petitioner's request for \$34,326.92 in attorney's fees and costs under Family Code section 271.

- 1 7) On 11/17/25, the hearing set for 12/23/25 was continued to 2/10/26 on the Court's own motion.
- 2 8) On 2/3/26, Petitioner filed a Supplemental Declaration.
- 3 9) At the prior 2/10/26 hearing, the Court granted Petitioner's request to have Respondent produce
- 4 bank statements from accounts including Citibank Checking and Savings, Robinhood Brokerage,
- 5 Coinbase Account, and KiloAngel, and continued the matter to 4/30/26.
- 6 10) On 4/21/26, Petitioner filed a supplemental declaration regarding Respondent's ability to pay
- 7 sanctions. Petitioner renewed the request for the Court to declare Respondent a vexatious litigant.
- 8 11) On 4/23/26, Respondent filed a supplemental declaration reiterating his opposition to Petitioner's
- 9 requests. Respondent seeks \$18,500 in Family Code section 271 sanctions against Petitioner.
- 10 Respondent seeks additional relief related to support and imputation of income.
- 11 12) On 4/24/26, Respondent filed an Income and Expense Declaration.
- 12 13) On 4/24/26, Respondent filed a declaration attached to which are bank statements from the
- 13 following accounts: Citibank Checking and Savings, Robinhood Brokerage, Coinbase Account,
- 14 and KiloAngel.

15 **B. Findings and Order**

- 16 1) Respondent is admonished for his actions in this case including, but not limited to: (a) attempting
- 17 to relitigate adjudicated motions of which he doesn't like the outcome, such as the Court's
- 18 11/3/22 order (filed 1/6/23); (b) causing unnecessary delay of pending motions; and (c) causing
- 19 Petitioner to feel harassed or intimidated while under a current Domestic Violence Restraining
- 20 Order, see Exhibit 1 of Petitioner's 10/16/25 Request for Order.
- 21 2) The Court finds that such conduct constitutes uncooperative and inappropriate behavior that
- 22 unnecessarily increased Petitioner's legal fees. As such, Petitioner's request for \$34,326.92 in
- 23 attorney's fees and costs under Family Code section 271 is GRANTED. The Court finds
- 24 Respondent has the ability to pay sanctions in the amount of \$34,326.92 based on documentary
- 25 evidence attached to Petitioner's 4/21/26 supplemental declaration. Respondent shall pay this
- 26 balance in full by 5/30/26 at 5 PM.
- 27 3) However, the Court finds that Respondent's actions have not risen to the level of vexatious
- 28 litigant under Code of Civil Procedure section 391 subsections (b)(2), (b)(3), and (b)(5) at this
- 29

1 time; therefore, Petitioner's request the Court declare Respondent a vexatious litigant is DENIED
2 without prejudice.

3 4) Respondent is admonished to correct his conduct forthwith. The Court will consider issuing an
4 order to show cause to determine whether Respondent should be declared vexatious on the
5 Court's own motion should Respondent continue to engage in uncooperative and inappropriate
6 behavior.

7 5) Respondent's request for \$18,500 in Family Code section 271 sanctions against Petitioner is
8 DENIED.

9 6) All other relief requested by Respondent – including, but not limited to, relief related to support
10 and imputation of income – is DENIED without prejudice as beyond the scope of this hearing.

11 7) Counsel for Petitioner shall prepare the Findings and Order After Hearing.

12 8) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
13 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
14 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
15 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
16 proposed order after hearing directly to the court. Failure to submit the order after hearing within
17 10 days may allow the other party to prepare a proposed order and submit it to the court in
18 accordance with CA Rules of Court, Rule 5.125(d).